

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 11, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Shanor and Mr. Roybal, agenda items #22 (c) and #22 (d) were removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 27, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing for transfer of retail liquor license application filed with the City Clerk’s Office for Ace Majestic, Inc. d/b/a Redwood Lounge and Package Liquors, 2105 E. Lincolnway, Cheyenne, Wyoming (license currently held by Deep South LLC d/b/a Redwood Lounge). There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to the Finance Committee.

ORDINANCE – 2nd READING – Amending Chapter 10.56, Handicapped Parking Spaces, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming (Sponsor – Mr. White). Reporting for Finance Committee, Mr. Luna moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Approving and establishing an amendment to the Temporary Permit Process contained in Title 5 of City Code. Mr. Luna moved to approve on second reading, seconded by Mr. Esquibel. Mr. Luna moved to amend by substitute dated May 5, 2020, seconded by Mr. Roybal. Mr. Shanor explained the proposed substitute reflects changes agreed upon between the City and Cheyenne Frontier Days. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn “no”.

ORDINANCE – 2nd READING – Approving and establishing amendments to various portions of Title 6 of City Code to redefine animal owner and amend fee structure. Mr. Luna moved to approve on second reading, seconded by Mr. Cook. Comments were made regarding having additional communication between the City and the Animal Shelter relating to their annual budget. Mr. Shanor explained the ordinance addresses enforcement, defines animal ownership and raises certain fees and reported representatives from the Animal Shelter advised members of the Finance Committee that they support the proposed amendments. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities – referred to Finance Committee. (Sponsor – Mr. Laybourn)

ORDINANCE – 1st READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2020 and ending June 30, 2021 – referred to Committee of the Whole. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Amending Sections 1.4.3, 2.1.1, 2.1.2, and 4.2.5 of the Unified Development Code of the City of Cheyenne, Wyoming, to define and clarify the purpose of remainder lots – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Amending Section 2.2.6 of the Unified Development Code of the City of Cheyenne, Wyoming, to modify time limits associated with temporary uses – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Amending Sections of Article 2 of the Unified Development Code of the City of Cheyenne, Wyoming, to modify posted notice requirements for site plans and administrative approvals, clarify procedures for modification of site plans, modify authority to initiate text amendments, and modify criteria for variance approval – referred to Public Services Committee. (Sponsor – Mr. Case)

RESOLUTION – In appreciation of the teachers of Laramie County School District Number One and Laramie County Community College for their exceptional efforts during the Covid-19 Pandemic. Reporting for Public Services Committee, Mr. Case moved to adopt, seconded by Mr. Luna. Mr. Laybourn advised the proposed substitute includes the addition of other leaders and community members who have provided outstanding educational services relating to the current Covid-19 Pandemic for the youth of our community. Mr. Case moved to amend by substitute, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#6054)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Willow Heights, a replat of Lot 14, Block 5, Homestead Addition, First Filing Replat, Cheyenne, Laramie County, Wyoming (located south of Homestead Avenue, between Henderson Drive and Hanson Street) (Sponsor – Mr. Case). Mr. Case moved to adopt, seconded by Mr. Luna. Mr. Case moved to amend by revised final plat map dated May 4, 2020, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Mr. Case moved to postpone to May 26, 2020, seconded by Mr. Shanor. Motion to postpone carried. Voting “yes” – all members of the governing body.

RESOLUTION - Recommending a salary reduction for the City’s Governing Body. Mr. Luna moved to adopt, seconded by Mr. White. Comments were made in regard to the proposed resolution relating to: process involving communication between members of the governing body, questions involving constitutionality, lack of City Attorney’s office support, general support of proposed amendments made at the May 4, 2020 Finance Committee, and confirmation that the proposal affects all members of the City Council. Mr. Luna moved to amend by substitute authored by Councilman Shanor which revised the Now Therefore, Be It Resolved clause by striking #1 and replacing it with: 1. The Governing Body of the City of Cheyenne believes it is important for all members of the Governing Body to lead by example and incur a reduction in pay commensurate with the city department global percentage cut of 13% proposed in Mayor Orr’s FY 2021 budget proposal, and by adding a new Section #2 in the Now, Therefore, Be It Resolved clause to read as follows: 2. All members of the Governing Body are encouraged to remit 13% of their salaries to the general fund each month of FY 2021 fiscal year, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body. Mr. Luna moved to amend by replacing “Governing Body” with “City Council”, removing the Mayor, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. Mr. Luna moved to amend the Now Therefore, Be It Resolved clause, Section 2, to read as follows: “All members of the City Council are encouraged to remit 13% of their salaries which will sunset on December 31, 2020”, seconded by Mr. Shanor. Motion to amend carried with all members of the governing body voting “yes”. Mr. Luna moved to amend the Now Therefore, Be It Resolved clause, Section 2, by replacing “general fund” with “Forward Greater Cheyenne Emergency Relief Fund”, seconded by Mr. Shanor. Mayor Orr, upon inquiry, advised that due to the City’s current payroll process, the City will not be making the transfer of funds and that members of the City Council wanting to contribute to the Forward Greater Cheyenne Emergency Relief Fund are individually responsible to make those contributions. Motion to amend carried with all members of the governing body voting “yes”. Additional comments were made on the following topics: amendments made, constitutionality of resolution, policy, procedure and communication concerns, efforts in sharing a message that the governing body shares the community’s concerns and requests for increased transparency. Main motion, as amended four times, carried with all members of the governing body voting “yes” with the exception of Mr. Laybourn voting “no”. (#6055)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Coronavirus Emergency Supplemental Funding Program Grant Funding – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Adopting the City of Cheyenne Comprehensive Consolidated Plan 2020-2024 and 2020 Annual Action Plan, prepared by the Cheyenne Housing and Community Development Office (Department of Housing & Urban Development (HUD) Grant) – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Bus and Bus Facilities Program Grant, 49 U.S.C. §5339, for the purchase of a facility to be used as a Transit Administrative Office and Bus Transfer Station (49 U.S.C. §5339 Grant) – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Center Point Subdivision, 2nd Filing, a replat of Lots 1 thru 7, Block 1, inclusive, Center Point Subdivision, Cheyenne, Laramie County, Wyoming (located west of the intersection of Homestead Avenue and Eda Place) – referred to Public Services Committee. (Sponsor – Mr. Case)

Agreement between the City of Cheyenne, Laramie County, and Christensen's Inc., granting an access easement for use and maintenance of an access road and drainage conveyance across land owned by the City (revenue to the City). Mr. Luna moved to approve, seconded by Mr. White. Mr. Luna moved to postpone to May 26, 2020, seconded by Mr. Cook. Motion to postpone carried. Voting "yes" – all members of the governing body.

Agreement between the City of Cheyenne, Laramie County, and Christensen's Inc., for driveway and drainage maintenance of an access road and drainage conveyance across land owned by the City. Mr. Luna moved to approve, seconded by Mr. Roybal. Mr. Luna moved to postpone to May 26, 2020, seconded by Mr. Roybal. Motion to postpone carried. Voting "yes" – all members of the governing body.

Development Agreement between the City of Cheyenne and Leader Custom Homes, LLC, for regrading, installation and construction of sidewalks, utilities, drainage features and landscaping on City property in conjunction with development of the Willow Heights Subdivision. Mr. Luna moved to approve, seconded by Mr. Roybal. Kris Jones, City Clerk, requested clarification on a proposed postponement. Charles Bloom, Planning & Development Director, advised the applicant has requested a postponement for agenda items #22 (c) and #22 (d). Mr. Luna moved to postpone to May 26, 2020, Seconded by Mr. Laybourn. Motion to postpone carried. Voting "yes" – all members of the governing body.

Maintenance Agreement between the City of Cheyenne and Leader Custom Homes, LLC, for maintenance of improvements made upon land owned by the City in the area of the Willow Heights Subdivision. Mr. Luna moved to approve, seconded by Mr. Case. Mr. Luna moved to postpone to May 26, 2020, seconded by Mr. Case. Motion to postpone carried. Voting "yes" – all members of the governing body.

[CA] Hunter Management Agreement between the City of Cheyenne and Wyoming Game & Fish Commission to allow public access for hunting on the Belvoir Ranch – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Seon System Sales, Inc., d/b/a FleetMind Solutions, Coquitlam, British Columbia, for a Solid Waste Services Route Management & Work Management System to include Software, Hardware, and Professional Services (Solid Waste Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of city-owned land and buildings for parking, camping, and other activities during the 2020 Cheyenne Frontier Days celebration – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Waste Management of Colorado, Inc., Denver, CO, for Waste Management Recycling Services (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6798 between the City of Cheyenne and Trihydro Corporation, Laramie, Wyoming, for Happy Jack Landfill Environmental Monitoring Services (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$58,795.00). (#6798)

[CA] Contract Extension Agreement to the Community Counseling and Intervention Services Agreement (City Contract No. 6266) between the City of Cheyenne Youth Alternatives Division and Laramie County School District Number One (revenue to the City). Motion (per Consent Agenda) carried. (#6266)

[CA] Renewal of Contract #6836 between the City of Cheyenne and Blue Cross Blue Shield for group health insurance benefits for City employees – referred to Finance Committee.

CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental insurance benefits for City employees – referred to Finance Committee.

[CA] Consideration of Bid #S-9-20 for a contract between the City of Cheyenne and 4 Quarters Excavation & Development, for the Henderson Greenway Connector Project (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$167,442.69). (#7170)

[CA] Consideration of Bid #E-18-20 for furnishing LED Lighting Equipment for the City of Cheyenne, Aquatics Center (2011-2014 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-19-20 for five (5) new ten yard tandem dump trucks with spreaders and snow plows for the City of Cheyenne, Street & Alley Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-20-20 for three (3) new 2020-2021 twin-screw diesel powered cab & chassis for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-21-20 for 2020-2021 cab & chassis, single arm & dual arm automated loaders for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-20 for 2020-2021 ½ ton, 4 door crew cab, full size pickup trucks, 4x4, 6 ½ foot box, with Fleet Work Package for the City of Cheyenne, Compliance Division and Sanitation Division (General Fund & Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-24-20 for furnishing Bituminous Asphalt Hot Mix, Tack Oil and Cold Mix on an annual basis for the City of Cheyenne, Street & Alley Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-25-20 for furnishing Aggregates on an annual basis for the City of Cheyenne, Street & Alley Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Request to expand seating area for consumption relating to restaurant liquor license held by Central Café LLC d/b/a Central Café, 3920 Central Ave., Cheyenne, Wyoming – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Memorial Day holiday and City offices being closed on Monday, May 25, 2020, the regularly scheduled City Council meeting will instead be held on Tuesday, May 26, 2020 at 6:00 p.m. via electronic conference meeting.

Under other business:

Mayor Orr commented on challenges of present electronic conference meetings and advised she will be in contact with the City/County Health Department relating to having meetings of the governing body in the Civic Center which could allow for social distancing. She reported the Wyoming State Legislature will face similar challenges later this week when they convene during a special session.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:01 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
May 19, 2020